

PLANNING DISCLOSURE REPORT

3 Flood St, Leichhardt NSW 2040

Prepared: 12 April 2026 Lat/Lng: -33.883800, 151.154600

Prepared by **Verify** — NSW Planning Intelligence

1. Risk Summary

Constraint	Finding	Source
Heritage Listing	Not listed	NSW Planning Portal
Acid Sulfate Soils	Class 5	NSW Planning Portal
Key Sites / Special	Yes — Clauses 4.3C, 4.4, 6.14, 6.15	NSW Planning Portal
Biodiversity Sensitivity	Not identified	PostGIS
Riparian Land	Not identified	PostGIS
Wetlands	Not identified	PostGIS
Landslide Risk	Not identified	PostGIS
Flood Planning Area	Not identified	PostGIS
Foreshore Building Line	Not identified	PostGIS
Classified Road Frontage (9 m setback)	Not identified	PostGIS

Environmental overlays (biodiversity–flood): NSW ePlanning Protection and Hazard GIS services — not returned by standard title searches or s10.7 certificates. LEP constraints (foreshore, classified road): NSW ePlanning Principal Planning Layers. Coverage: 33 Greater Sydney LGAs.

2. Development Feasibility Snapshot

Answers to the questions buyers most frequently ask. Based on LEP controls, valuation data and environmental overlays. Each finding requires professional planning advice before acting.

Question	Finding	Basis
Secondary dwelling (granny flat)	Unlikely — lot too small	Lot area 256 m ² is below the 450 m ² minimum required for a secondary dwelling.
Torrens title subdivision	Not feasible — lot too small	Lot area 256 m ² < 2 × 200 m ² LEP minimum.
Complying Development Certificate (CDC)	Potentially eligible	No heritage, biodiversity or flood constraints identified. CDC may be available for dwelling alterations and additions subject to SEPP (Housing) 2021 controls.
Development potential (max permissible FSR)	1.25 FSR	Lot 256 m ² × FSR 0.5:1. Existing improvements reduce available headroom — compare against current dwelling footprint.

3. Property & Development Rights

Control	Value	Reference
Zone	R1 — General Residential	Inner West Local Environmental Plan
Max Building Height	Not specified	
Floor Space Ratio	0.5	Clause 4.4 2B (c)
Min Lot Size (LEP)	200 m ²	
Actual Lot Area	256 m ²	NSW Valuation Service
Land Value (unimproved)	\$1,390,000.0 (\$5,425/m ²)	NSW Valuation Service

Maximum permissible GFA: 128 m² (lot area 256 m² × FSR 0.5:1). Actual achievable GFA subject to setbacks, height plane, and DCP controls.

Subdivision: Lot area (256 m²) is less than 2× minimum lot size (200 m²). Subdivision unlikely without variation.

Permitted uses (R1): Dwelling house · Secondary dwelling (granny flat) · Home business · Community facilities · Child care centres

Key Sites provisions:

- **CI 4.3C:** Height of buildings — Key Sites Area: site-specific height controls apply, may differ from zone-wide height limit.
- **CI 4.4:** Floor Space Ratio — Key Sites Area: site-specific FSR controls apply via Clause 4.4 2B(c).
- **CI 6.14:** Affordable housing contribution may be required for residential development.
- **CI 6.15:** Design excellence process required for certain development types.

4. DCP Development Controls — Setbacks

Leichhardt DCP 2013 — Part C3.2 — Site Layout and Building Design (ref: C4, C7)

Scope: Dwelling houses and residential development generally. Zone: R1. Controls shown for dwelling house as representative residential development type.

Site-derived controls — no fixed number exists in the DCP. The DCP specifies the method; the actual setback is determined by a planner from a site visit:

Setback	Method / Basis	Clause	What this means
Front	Building Location Zone — prevailing character	C4	BLZ is determined by where buildings sit on adjoining properties. No fixed number — derived by planner from site visit.
Side	Height-dependent graph (60° angle from wall)	C7	Setback scales continuously with wall height per Figure C129. Approx 1.0 m at 4 m wall height, 1.5 m at 5.5 m. Not a fixed minimum — derived from the graph.
Rear	Building Location Zone — prevailing character	C4	Consistent with rear building line of adjoining properties. No fixed number.

Important: Area-specific controls may apply: Leichhardt DCP includes 'Distinctive Neighbourhood' Building Typology Statements (Appendix) for individual streets and precincts. These can impose additional or different controls not reflected here. Confirm with Council for the specific street.

These controls apply to dwelling house development in the identified zone. Different development types (dual occupancy, multi-dwelling, residential flat buildings) trigger different DCP chapters. Heritage listings or HCA status add further controls. A town planner is required to determine applicable setbacks for any specific proposal.

Site-derived controls require site visit: Where setbacks are determined by prevailing character, building location zones, or height-dependent graphs, the actual number cannot be established without a site analysis. Development on character-based sites requires a pre-DA assessment and in most cases a pre-lodgement meeting with Council before applicable setbacks can be established.

5. Environmental Constraints

Acid Sulfate Soils: Class 5

Subaqueous — applies to tidal wetlands/waterways. Works may still require management plan.

6. Heritage

No heritage listing identified via NSW Planning Portal.

Note: Heritage Conservation Area (HCA) status is not assessed here. Check Council's heritage maps separately.

7. State Environmental Planning Policy (SEPP) Overlays

SEPP / Instrument	Practical Implication
State Environmental Planning Policy (Sustainable Buildings) 2022	BASIX certificate required for new dwellings and renovations exceeding \$50,000.
State Environmental Planning Policy (Transport and Infrastructure) 2021	Check for infrastructure corridors or classified road setback requirements.

8. Nearby Development Activity (200m, 12 months)

No development applications lodged within 200m in the past 12 months. Low immediate construction disruption risk from neighbouring properties.

9. Disclosure Notes

Data currency: All portal data current as at report date (2026-04-12). Layer currency dates vary — check 'Currency Date' field in planning portal for each instrument.

s10.7 Certificate: This report is NOT a substitute for a Section 10.7 Planning Certificate. A s10.7(5) certificate from Council is the authoritative disclosure document for conveyancing under Section 149 of the Environmental Planning and Assessment Act 1979.

Environmental overlays: Biodiversity, riparian, wetlands, landslide and flood data sourced from NSW ePlanning ArcGIS Protection and Hazard services. These layers are not included in s10.7(2) certificates and may not appear on standard title searches. Data accuracy is subject to NSW Government mapping precision — verify with council for site-specific advice.

DCP provisions: Development Control Plan (DCP) provisions available for Inner West LGA properties (Marrickville, Leichhardt, Ashfield precincts) via the Verify platform. Contact Verify for access.

Liability: This report provides planning intelligence for due diligence review. It does not constitute legal advice. Recipients should obtain independent planning, legal and environmental advice as appropriate.